



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

June 12, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15442
(SIXTH REVISION)

EXPIRATION DATE: 2028-05-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Linde Gas & Equipment Inc.
Murray Hill, NJ
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of hydrogen fluoride, anhydrous in a non-DOT specification cylinder. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.301, 173.304a, and 178.39 in that non-DOT specification cylinders are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Linde Gas North America LLC dated May 16, 2024, and submitted in accordance with § 107.109.

Tracking Number: 2024054682

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrogen fluoride, anhydrous	8	UN1052	I Hazard Zone C

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed are non-DOT specification (shortened DOT 3BN) cylinders identified by the following serial numbers: 08BN0009 to 08BN0166; 08BN0502 to 08BN0507; 09BN0401 to 09BN0448; 09BN0451 to 09BN0500; 10BN0054 to 10BN0115; 10BN0169 to 10BN0297 and 10BN0592 to 10BN0707

(1) The cylinders were re-manufactured by HOKE Inc., from existing DOT 3BN400 cylinders by reducing their length from 21 $\frac{1}{8}$ inches to 15 $\frac{7}{8}$ inches.

(2) The re-manufactured cylinders meet all requirements of § 178.39 except that the yield point is more than 50% of tensile strength specified in § 178.39(l)(2).

b. OPERATIONAL CONTROLS:

(1) Before being used under the terms of this special permit, each cylinder must pass the visual inspection and hydrostatic pressure test specified in §§ 180.205(f) and 180.205(g). The test pressure must be 800 psig. All volumetric expansion data must be reported. Cylinders with permanent volumetric expansion exceeding 2% of the total expansion at test pressure must be rejected and condemned. A DOT approved independent inspection agency must witness all tests and furnish reports to Linde. Reports must be maintained in accordance with § 180.215(b). Linde must retain all records and make them available to the Office of Hazardous Materials Safety upon request.

(2) Each cylinder with acceptable results shall be permanently marked in accordance with § 180.213 and include the following marking: "HF Service Only". The original DOT stamp marking shall be removed (by grinding or stamping a series of X's over the DOT specification number) and replaced with: "DOT-SP 15442-125/TP 800 psig".

- c. REQUALIFICATION: Each cylinder must be requalified at least once every five years as prescribed for DOT Specification 3BN cylinders. Each cylinder must be visually inspected and hydrostatically pressure tested in accordance with §§ 180.205(f) and 180.205(g). The test pressure must be 800 psig. Cylinders with permanent volumetric expansion exceeding 2% of the total expansion at test pressure must be rejected and condemned.
8. SPECIAL PROVISIONS:
- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, cargo vessel, and rail freight.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act:

A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Casey Chambers